provides that the amount includible in the gross income of a successor in interest of a deceased partner under section 736 (a) shall be considered income in respect of a decedent under section 691, shall apply only in the case of payments made with respect to decedents whose death occurred after December 31, 1954.

(c) *Optional treatment of certain distributions.* (1) For a partnership taxable year beginning after December 31, 1953, and before January 1, 1955, a partnership may elect to apply the rules of certain sections of subchapter K with respect to current distributions made by the partnership in such year. These sections are 731, 732 (a), (c), and (e), 733, 735, and 751 (b), (c), and (d). If an election is made, it shall apply to the partnership and all its members for all current distributions made by the partnership during the taxable year. Such distributions shall also be subject to the rules of sections 705 (relating to determination of basis of a partner's interest), 752 (relating to treatment of certain liabilities), and 761 (d) (relating to the definition of liquidation of a partner's interest), to the extent that such sections apply to current distributions.

(2) An election under this paragraph shall be made by a statement filed with the partnership return for the taxable year to which such election applies, or filed within 90 days after the promulgation of the regulations under section 771, whichever date is later. The statement shall be signed by all members of the partnership and the election once made shall be binding on the partnership and on all of its members.

[SEAL] RUSSELL C. HARRINGTON,
Commissioner of Internal Revenue.

Approved: May 23, 1956.

DAN THROOP SMITH,
Special Assistant to the Secretary in Charge of Tax Policy.

[F. R. Doc. 56-4164; Filed, May 23, 1956; 4:51 p. m.]

TITLE 27—INTOXICATING LIQUORS

Chapter I—Internal Revenue Service, Department of the Treasury

[T. D. 6174]

[Reg. 5]

PART 5—LABELING AND ADVERTISING OF DISTILLED SPIRITS

MISCELLANEOUS AMENDMENTS

Notice of public hearing to be held in Washington, D. C., on December 1, 1955, with respect to certain proposals to amend Regulations No. 5, Relating to Labeling and Advertising of Distilled Spirits, was published in the FEDERAL REGISTER on November 19, 1955 (20 F. R. 8574). Upon the conclusion of the said hearing and after consideration of all relevant material submitted by interested persons in connection therewith regarding the proposals, the following amendments to Regulations No. 5 (27 CFR, Part 5) are hereby adopted:

PARAGRAPH 1. Section 21, class 4 (a) (27 CFR 5.21 (d) (1)), by adding the following proviso at the end of the second sentence: "*Provided*, That in the case of any fruit brandy, other than neutral brandy, pomace brandy, marc brandy or grappa brandy distilled from the fermented juice, mash, or wine of grapes, or the residue thereof, which has been aged for less than two years, the statement of the class (and type, if any) shall be preceded by the word 'immature' appearing in the same size and kind of type and as a part thereof, e. g., 'immature brandy' or 'immature grape brandy'."

PAR. 2. The proviso at the end of section 39 (b) (1) (27 CFR 5.39 (b) (1)) is amended to read as follows: "*Provided*, That an appropriate statement with respect to age shall appear on the brand label in the case of brandy (other than immature brandies) not aged for a period of at last two years."

PAR. 3. Section 39 (e) (5) (27 CFR 5.39 (e) (5)) is amended by inserting immediately after the word "brandies" appearing in the proviso at the end of the first sentence thereof, the following: "(except immature brandies)".

PAR. 4. Section 64 (c) (27 CFR 5.64 (c)) is amended by inserting in the last sentence immediately after the word "brandy", the following: "(except immature brandies)".

This Treasury decision shall become effective thirty days after publication in the FEDERAL REGISTER.

(53 Stat. 375; 26 U. S. C. 3176. Interpret or apply sec. 5, 49 Stat. 981, as amended; 27 U. S. C. 205)

[SEAL] HARRY J. TRAINOR,
Acting Commissioner.

Approved: May 21, 1956.

DAN THROOP SMITH,
Special Assistant to the Secretary in Charge of Tax Policy.

[F. R. Doc. 56-4118; Filed, May 24, 1956; 8:49 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1300]

[Utah 010927, 010931]

UTAH

MODIFYING THE EXECUTIVE ORDER OF APRIL 4, 1922, WHICH CREATED PUBLIC WATER RESERVE NO. 82

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive order of April 4, 1922, establishing Public Water Reserve No. 82, is hereby modified to the extent necessary to permit disposal of the following-described lands under applicable public-land laws by a State exchange or a State selection:

SALT LAKE MERIDIAN

T. 17 S., R. 21 E.,
Sec. 15, SW¼SW¼;
Sec. 22, N½NW¼;
Sec. 27, SW¼SE¼;
Sec. 28, NE¼NW¼;
Sec. 33, SE¼SW¼;
Sec. 34, W½NW¼;
Sec. 35, SW¼NW¼.
T. 18 S., R. 21 E.,
Sec. 1, lot 4;
Sec. 9, N½SE¼;
Sec. 10, NE¼SE¼;
Sec. 11, SW¼SW¼, SW¼SE¼;
Sec. 14, NW¼NE¼, SW¼NW¼, NW¼SW¼;
Sec. 15, NE¼NE¼, NE¼SW¼;
Sec. 17, SE¼NE¼;
Sec. 20, S½NE¼, SW¼SW¼;
Sec. 29, SW¼SE¼.

The areas described aggregate 985.98 acres.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

MAY 21, 1956.

[F. R. Doc. 56-4104; Filed, May 24, 1956; 8:46 a. m.]

TITLE 46—SHIPPING

Chapter I—Coast Guard, Department of the Treasury

Subchapter N—Explosives or Other Dangerous Articles or Substances and Combustible Liquids on Board Vessels

[CGFR 56-21]

PART 146—TRANSPORTATION OR STOWAGE OF EXPLOSIVES OR OTHER DANGEROUS ARTICLES OR SUBSTANCES AND COMBUSTIBLE LIQUIDS ON BOARD VESSELS

MISCELLANEOUS STORAGE REQUIREMENTS

A notice regarding proposed changes in the navigation and vessel inspection regulations was published in the FEDERAL REGISTER dated March 1, 1956 (21 F. R. 1350–1356), as Items I through XVI on the Agenda to be considered by the Merchant Marine Council, and a public hearing was held on April 24, 1956, at Washington, D. C. This document is the first of a series of documents covering the regulations considered at this public hearing. Another document will be published containing all the miscellaneous amendments regarding Dangerous Cargo Regulations in Item XIII on the Agenda.

After the public hearing held on April